

SENATE No. 823

The Commonwealth of Massachusetts

PRESENTED BY:

Rebecca L. Rausch

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act enhancing post-pregnancy mental health care.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Rebecca L. Rausch</i>	<i>Norfolk, Worcester and Middlesex</i>	
<i>Patricia D. Jehlen</i>	<i>Second Middlesex</i>	<i>3/6/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>9/10/2025</i>

SENATE No. 823

By Ms. Rausch, a petition (accompanied by bill, Senate, No. 823) of Rebecca L. Rausch and Patricia D. Jehlen for legislation to enhance post-pregnancy mental health care. Financial Services.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 708 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act enhancing post-pregnancy mental health care.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 17C of chapter 32A of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by inserting, in line 5, after the words “postpartum care” the
3 following words:- , including post-pregnancy mental health care.

4 SECTION 2. Said section 17C of said chapter 32A, as so appearing, is hereby further
5 amended by adding the following sentences:-

6 Coverage for post-pregnancy mental health care, including but not limited to postpartum
7 mental health care and post-miscarriage mental health care, provided under this section shall not
8 be subject to any deductible, coinsurance, copayment or any other cost-sharing requirement.
9 Coverage offered under this section shall not impose unreasonable restrictions or delays in the

coverage. Benefits for an enrollee under this section shall be the same for the enrollee's covered spouse and covered dependents. The commission shall ensure plan compliance with this chapter.

SECTION 3. Section 10A of chapter 118E of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by inserting, in line 3, after the words "postpartum care" the following words:- , including post-pregnancy mental health care.

SECTION 4. Said section 10A of said chapter 118E, as so appearing, is hereby further amended by adding the following sentences:-

Benefits for an enrollee under this section shall be the same for the enrollee's covered spouse and covered dependents.

Nothing in this section shall be construed to deny or restrict the division's authority to ensure its contracted health insurers, health plans, health maintenance organizations, behavioral health management firms and third-party administrators under contract to a Medicaid managed care organization or primary care clinician plan are in compliance with this chapter.

SECTION 5. Section 10E of said chapter 118E, as so appearing, is hereby amended and by inserting after the words "gynecological care" in lines 20-21, the following words:- , including post-pregnancy mental health care.

SECTION 6. Section 10S of said chapter 118E, as so appearing and as amended by chapter 186 of the acts of 2024, is hereby amended and by inserting before the words "post partum" in line 702, the following words:- post-pregnancy or.

SECTION 7. Section 47F of said chapter 175 of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by inserting, in line 22, after the words “post partum care” the following words:- , including post-pregnancy mental health care,.

SECTION 8. Said section 47F of said chapter 175, as so appearing, is hereby further amended by inserting, in line 46, after the word “care” the following words:- or post-pregnancy mental health care.

SECTION 9. Section 47WW of chapter 175 of the General Laws, as inserted by chapter 186 of the acts of 2024, is hereby amended by inserting after the word “for” the following words:- post pregnancy, or.

SECTION 10. Section 8H of chapter 176A of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by inserting, in line 10, after the word “care” the following words:- , including post-pregnancy mental health care.

SECTION 11. Said section 8H of said chapter 176A, as so appearing, is hereby further amended by inserting, line 33, after the word “care” the following words:- or post-pregnancy mental health care.

SECTION 12. Section 8XX of chapter 176A of the General Laws, as inserted by chapter 186 of the acts of 2024, is hereby amended by inserting after the word “for” the following words:- post pregnancy or.

SECTION 13. Section 4H of chapter 176B of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by inserting, in line 9, after the word “care” the following words:- , including post-pregnancy mental health care.

SECTION 14. Said section 4H of said chapter 176B, as so appearing, is hereby further amended by inserting, in line 32, after the word “care” the following words:- or post-pregnancy mental health care.

SECTION 15. Section 4XX of said chapter of 176B, as inserted by chapter 186 of the acts of 2024, is hereby amended by inserting after the word “for” the following words:- “post pregnancy or”.

SECTION 16. Section 4I of chapter 176G of the General Laws, as appearing in the 2022 Official Edition, is hereby amended in line 3 by inserting after the words “postpartum care” the following words:- , including post-pregnancy mental health care.

SECTION 17. Said section 4I of said chapter 176G, as so appearing, is hereby further amended by inserting, in line 27, after the word “care” the following words:- or post-pregnancy mental health care.

SECTION 18. Section 4PP of said chapter of 176G, as inserted by chapter 186 of the acts of 2024, is hereby amended by inserting after the word “for” the following words:- post pregnancy or.

SECTION 19. This act shall take effect 6 months after its passage.